January 15, 2025

Kind Meds Inc
ATTN: Jason Chacon
2152 South Vineyard St, Ste 120
Mesa, AZ 85210

RE: INSP-0051196

Dear Mr. Chacon:

The purpose of this letter is to inform you that during a recent compliance inspection (INSP-0051196) conducted on December 16, 2024, by the Arizona Department of Health Services ("the Department") cited violations in one or more areas that are repeat violations of the same statutes or rules cited previously during routine compliance inspections.

The Statement of Deficiencies ("SOD"), sent on January 7, 2025, describes the violations cited. Because the case has been referred to the Enforcement Team, and the Informal Dispute Resolution ("IDR") period has passed or the IDR has been reviewed and the citations were upheld, the Department is requesting $2,000.00 in Civil Money Penalties ("CMP"), along with a written plan of correction for the violations.

You are not required to agree to the CMP or to sign the attached agreement with the Department's requested CMP. If you do not sign the attached agreement with the Department's requested CMP and pay the CMP, the Department may choose to pursue enforcement action by issuing a notice with information about the enforcement action and the process for contesting the violations and enforcement action by submitting a timely request for an administrative hearing and/or an informal settlement conference under A.R.S. § 41-1092 et seq. You have the right to participate in a hearing and to present your position to a neutral administrative law judge, and you are under no obligation to agree to the CMP or the attached agreement. However, if you agree to pay the requested CMP and execute the attached agreement, please sign the forms and return them to the Department by January 22, 2025. If you execute the attached agreement and pay the CMP, the Department agrees not to pursue enforcement action regarding the violations in the SOD (except to show patterns of noncompliance and/or repeated violations).

Once the forms are completed, returned, and signed by the Department, the Department will open an Enforcement and an Invoice in the Facility Licensing Portal. Both the CMP and Plan of Corrections must be submitted through the portal within thirty (30) calendar days of the Effective Date of the agreement as set forth herein. To submit a Plan of Correction, please see pages 103-105 of the PO/BM Handbook.

If you have any questions, please call our office at (602) 364-0857.

Sincerely,

Stacy Marchelli
Compliance Manager
Bureau of Marijuana Licensing

Enclosure

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF MARIJUANA LICENSING

ENFORCEMENT MEETING NOTIFICATION OF RIGHTS

Facility Name:	License#	PO/BM:
Kind Meds Inc	00000088ESUZ76069650	Jason Chacon

Please initial after each section.

1. I understand that I have the right to reject the proposed resolution and may refuse to sign this Agreement. _____(initials)

2. This Agreement has been reviewed and approved by the Assistant Director. If this Agreement is changed, it will be returned to the Assistant Director for approval. _____(initials)

3. I understand that if I do not enter into an agreement at this time, the Program will refer this matter to Public Health Licensing Services ("Licensing") Enforcement Team and a legal notice may be prepared and sent to me. _____(initials)

4. I understand that I have due process rights and can request a hearing before the Office of Administrative Hearings regarding any legal notice issued by the Department's Director. _____(initials)

5. I understand that I have the right to consult with an independent attorney regarding this agreement and my rights and duties in connection with this agreement ante the matters addressed herein. _____(initials)

I hereby acknowledge that I have discussed the above statements with the Department and understand my rights with regard thereto.

Licensee: _____ Date: _____
(Licensee's signature)

ENFORCEMENT MEETING AGREEMENT FORM

Facility Name:	License#	PO/BM:
Kind Meds Inc	00000088ESUZ76069650	Jason Chacon

Department concern noted: The department is requesting $2,000.00 in Civil Money Penalties (CMP). Along with a written plan of correction for the violations.

Agreement:

(initials)_____ Licensee agrees to pay civil money penalties in the amount of $2,000.00.

(initials)_____ Licensee understands that if it fails to comply with this agreement or relevant statutes and rules, the Department may initiate enforcement action regarding violations of any statute or rule. Enforcement action may include assessment of civil money penalties, suspension or revocation of the License, and/or denial of the renewal application, and is subject to Licensee's administrative rights and remedies as provided under A.R.S. § 41-1092 et seq.

	PLEASE PRINT NAME	SIGNATURE	DATE
Licensee:	Jason Chacon		
Bureau Chief:	Kimberly Crawford		
Assistant Director:	Tom Salow		
Compliance Manager:	Stacy Marchelli		

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF MARIJUANA LICENSING

Jason Chacon
2152 South Vineyard St, Ste 120
Mesa, AZ 85210
License # 00000088ESUZ76069650

CIVIL PENALTIES

Statute/Rule	Violations	Penalty Assessment	Penalty Amount
A.R.S. § 36-2854(B)(3)	12/16/2024	Facility access	$2,000.00

Total			$2,000.00

Payments are to be made in the Facility Licensing Portal and shall be made within thirty (30) days from the execution date of the attached Enforcement Agreement unless an alternate payment schedule is arranged. Please review pages 115-117 of the PO/BM Handbook for instructions on how to make payment.